

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Thursday, May 28, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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20CV-02472	Ramiro Ramos vs Javier Zambrano et al.
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Order to Show Cause Re: Sanctions

Based on the declaration of counsel, Dennis Chin, filed May 5, 2026, the Court finds GOOD CAUSE NOT to issue sanctions. No appearance is required.

Order to Show Cause Re: Dismissal

Based on the declaration of counsel, Dennis Chin, filed May 5, 2026, the Court finds GOOD CAUSE NOT to dismiss the within action. No appearance is required.

Default Prove-Up Hearing

The default prove-up hearing is DROPPED FROM CALENDAR. The Court has reviewed the declarations submitted pursuant to Code of Civil Procedure section 585 in support of the request for default judgment and found the evidence sufficient for entry of judgment. The Court has signed the order for entry of judgment which will be processed by the clerk's office.

23CV-04368

Tony Borba, et al. vs County of Merced, et al.

Motion to Transfer

The Department of Fish and Wildlife's motion to transfer pursuant to Code of Civil Procedure section 394 is DENIED.

Code of Civil Procedure section 394 specifically excludes the State of California and its agencies from the code section. (Code Civ. Proc. § 394, subd. (b).) The Court is not aware of any authority, and none is provided, that supports the assertion CDFW may move to transfer a lawsuit initiated by a local government entity to another county pursuant to Code of Civil Procedure section 394.

Further, in the context of damages as we have here, when an action is commenced by a local government entity, Government Code section 955.3 applies. "Notwithstanding any provision of law, when a city, county, or city and county, or local agency is a plaintiff in an action or proceeding against the State of California, the action may be tried in any city or county, or city and county, where the city, county, or city and county, or local agency is situated." (Gov. Code § 955.3.) Thus, transfer may only be ordered in accordance with Code of Civil Procedure section 397.

24CV-05064

Heriberto Martinez vs Angel Anaya, et al.

Motion to Be Relieved as Counsel

The unopposed motion by attorney Kimberly G. Flores and the law firm of Berliner Cohen LLP, to be relieved as counsel for plaintiff Heriberto Martinez, AKA Eddie Martinez is GRANTED, effective upon the filing of a proof of service of the signed order on the client.

The Court will sign the order lodged with the court on April 15, 2026.

25CV-03246

People vs \$160,625.00 Currency

Status Conference

Appearance required.

25CV-04604

Alma Ramos vs Brandon Ellison

Order to Show Cause Re: Sanctions

Appearance required. Appear to show cause why sanctions should not be issued for Plaintiff's counsel's failure to appear at the case management conference on April 20, 2026. Notice of this hearing was sent by the clerk's office on April 30, 2026. No declaration has been filed by counsel in advance of the hearing. No proof of service of the summons and complaint on the defendant has been filed.